Intellectual Property & Privacy (IPP)

JM0160

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Lecture 6: Database Protection

Knowledge Clip 6.2: Introduction to Database Protection



Objective & Structure

Objective: Provide a general understanding of how databases can be protected under the EU IP law framework by examining protection provided to databases under the EU Database Directive [DD] (1996).

Structure:

1. Introducing two regimes of protection.
2. Subject-matter of protection.

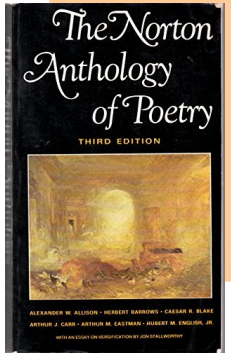


DD grants protection to databases in two ways (two regimes of protection)

Original databases

Copyright protection
Articles 3-6 of DD

Object: Protect human creativity expended in creating a database.



Non-original databases

Protection under *sui generis* database right
Articles 7-11 of DD

Object: Protect non-creative investment (financial, know-how, skill and labour, time) expended in creating a database.

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A database could obtain protection under copyright *AND* the sui generis database right, at the same time if the criteria necessary for obtaining protection under each regime is fulfilled.

Recap: How to analyze legal rights

Subject-matter	*What* is protected?
Criteria	*Which* criteria (conditions) need to be fulfilled for the subject-matter to obtain protection?
Scope	*How* is the subject-matter protected (i.e. what uses of the subject-matter require rightholder's authorization)?
Ownership	*Who* is the owner of the right (who is the rightholder)?
Duration	*For how long* is the subject-matter protected (what is the term of protection)?
Exceptions	*What* acts can be carried out without the rightholder's permission?



Subject-matter

Article 1(2) DD: Definition of a database (covers both electronic and non-electronic databases).

A **collection** of **independent** data arranged in a **systematic or methodical way** and **individually accessible** by electronic or other means.

Four cumulative criteria:

1. **Collection**: A collection or compilation of data.
   - Recital 17 DD: Data could be in the form of text, sound, images, numbers, facts etc.



Subject-matter

2. **Independence of data:** Data must constitute separate and independent items.

   - Autonomous informative value of data (as individual items or a few items of data in combination with each other) .
   - *Test:* Item(s) of data must have independent value when separated from database (CJEU, C-444/02 Fixtures Marketing [2004] para. 33)

3. **Systematic/methodical arrangement:** Data must be arranged in a systematic or methodical way (arrangement is logical not random).

4. **Individual accessibility**: Independent units of data can be retrieved individually.

   - Collection should include technical or other means (e.g. electro-optical processes, an index or a particular plan or method of classification) to allow retrieval of independent items of data. (CJEU, C-444/02 Fixtures Marketing [2004] para. 30)



Excluded from protection

Copyright and the sui generis database *only* protects the way the data has been selected and arranged within the database.

- Protection **does not** extend to the individual units of data contained in the database (although it is possible that such data may on their own qualify for protection e.g. under copyright law).
- Protection **does not** extend to computer software that drives the database (but software can be protected under copyright law).
- Protection can extend to materials necessary for operation/consultation of the database (e.g. indexing systems) [Recital 20 DD].



During Lecture 6

We will learn about:

1. Criteria for obtaining protection under the two protection regimes: copyright and the *sui generis* database right.
2. Ownership and Duration of protection under both regimes.
3. Scope of protection under both regimes.

Activity:

We will solve problem questions on real and hypothetical databases to analyze the following questions:

I. Can the database be protected under copyright and/or sui generis database right?

II. Has an act(s) been carried out without authorization of the rightholder that comes within the scope of the applicable IP right?

In solving the problems we will use the **Guide to Solving Problem Questions** provided on Canvas under Module 6. **Please bring a print-out of this document with you when you come to class!**



Self-Assessment Quizzes



Take the quiz

Go to: Canvas → Modules → Introductory Lecture → *Quizzes 6.A & 6.B*